23PSCV03075 23PSCV03075

County: los-angeles

Division: Civil Law and Motion

Department: G

Hearing date: 2026-08-03

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Case Number: 23PSCV03075 Hearing Date: August 3, 2026 Dept: G

Plaintiff Adam Dolce's Motion for Attorney's
Fees, Costs, and Expenses

Respondent:
NO OPPOSITION

TENTATIVE
RULING

Plaintiff
Adam Dolce's Motion for Attorney's Fees, Costs, and Expenses is GRANTED in a reduced amount. The Court AWARDS Plaintiff Michael Dolce a total of $74,590.63.

BACKGROUND

This is a contractual fraud action. On October 2, 2023, defendant The Internet Auto Group, Inc. (IAG), doing business as Plug-In Auto, allegedly advertised a car for sale online at a price of $31,930.00, and plaintiff Adam Dolce (Dolce) visited the IAG dealership to purchase the car. IAG allegedly told Dolce that the cost of the vehicle would be $35,600.00 after sales tax, official fees, and document processing charges. After Dolce agreed to that purchase price, IAG allegedly told Dolce that the total price was over $41,000.00 based on two mandatory add-ons, including a $1,995.00 theft-deterrent device and $1,995.00 for paint protection. When Dolce objected to the add-ons, IAG offered to reduce the price to $37,000.00, which he declined.

On October 5, 2023, Dolce filed the Complaint. On May 6, 2024, Dolce filed the operative Second Amended Complaint, alleging causes of action for (1) violation of the Consumers Legal Remedy Act, (2) intentional misrepresentation, (3) concealment, (4) negligent misrepresentation, (5) breach of contract, and (6) violation of the Unfair Competition Law.

On March 23, 2026, the parties informed the court that they settled the case.

On May 19, 2026, Dolce filed this motion for attorney's fees, which is unopposed.

This case is set for an order to show cause re: dismissal (settlement) and a hearing on the motion August 3, 2026.

ANALYSIS

Dolce moves for an award of attorney's fees in the amount of $89,986.13. For the following reasons, the motion for attorney's fees is GRANTED in the reduced amount of $74,590.63.

Legal Standard

In trial court litigation, attorney's fees are recoverable if authorized by contract, statute, or law. (Code Civ. Proc., § 1033.5, subd. (a)(10).)

"It is well established that the determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court, whose decision cannot be reversed in the absence of an abuse of discretion." (Melnyk v. Robledo (1976) 64 Cal.App.3d 618, 623.) The fee setting inquiry in California ordinarily "begins with the 'lodestar' [method], i.e., the number of hours reasonably expended multiplied by the reasonable hourly rate.” (Graciano v. Robinson Ford Sales, Inc. (2006) 144 Cal.App.4th 140, 154.) “The reasonable hourly rate is that prevailing in the community for similar work.” (Margolin v. Regional Planning Com. (1982) 134 Cal.App.3d 999, 1004.) “Under the lodestar method, a party who qualifies for a fee should recover for all hours reasonably spent unless special circumstances would render an award unjust.” (Vo v. Las Virgenes Municipal Water Dist. (2000) 79 Cal.App.4th 440, 446.)

“[A] computation of time spent on a case and the reasonable value of that time is fundamental to a determination of an appropriate [attorney’s] fee award.” (Margolin v. Regional Planning Com., supra, 134 Cal.App.3d at 1004.) The lodestar figure may then be adjusted, based on consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided. (See Serrano v. Priest (1977) 20 Cal.3d 25, 49, discussing factors relevant to proper attorney’s fees award.) Such an approach anchors the trial court’s analysis to an objective determination of the value of the attorney’s services, ensuring that the amount awarded is not arbitrary. (Id. at 48, fn. 23.) The factors considered in determining the modification of the lodestar include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Mountjoy v. Bank of America (2016) 245 Cal.App.4th 266, 271.) “[T]he burden is on the party seeking attorney fees to prove that the fees it seeks are reasonable.” (Gorman v. Tassajara Development Corp. (2009) 178 Cal.App.4th 44, 98.) “[A]n award of attorney fees may be based on counsel’s declarations, without production of detailed time records.” (Raining Data Corp. v. Barrenechea (2009) 175 Cal.App.4th 1363, 1375.) “[P]aralegal fees may be awarded as attorney’s fees if the trial court deems it appropriate. . . .” (Roe v. Halbig (2018) 29 Cal.App.5th 286, 312.)

Where a party is challenging the reasonableness of attorney’s fees as excessive that party must “attack the itemized billing[] with evidence that the fees claimed were not appropriate, or obtain the declaration of an attorney with expertise in the procedural and substantive law to demonstrate that the fees claimed were unreasonable." (Premier Medical Management Systems, Inc. v. Cal. Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 563–564.) "[I]t is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence and arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Id. at 564.) "General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Ibid.)

A "court should defer to the winning lawyer's professional judgment as to the tasks completed in an action because he won, and might not have, had he been more of a slacker." (Moreno v. City of Sacramento (9th Cir. 2008) 534 F.3d 1106, 1111.) A losing party cannot litigate tenaciously then be heard to complain about the time spent or tasks performed by the prevailing party in response. (City of Riverside v. Rivera (1986) 477 U.S. 561, 580, fn. 11.) Where a defendant does not produce evidence contradicting the reasonableness of counsel's hourly rates, the court will deem an attorney's hourly rate as reasonable. (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 473.)

Discussion

As the prevailing party, Dolce is entitled to attorney's fees pursuant to the parties' "Settlement & Release Agreement" executed on March 20, 2026. (See Compendium Of Exhibits ("COE"), Exh. 20, ¶ B(3) provides, "For purposes of [a motion for attorney's fees, costs, and expenses], [Dolce] shall be deemed to have prevailed on all causes of action asserted in the Action. In opposing such motion, [IAG] may contest the reasonableness of the [attorney's] fees, costs, and expenses sought by [Dolce], but it may not contest [Dolce]'s entitlement to recover his attorneys' fees, costs, and expenses in the Action.")

To decide the award, the court considers the reasonableness of the claimed hours, the reasonableness of the rates charged, whether to apply a lodestar multiplier, deductions for sanctions, and the amount of costs and expenses.

Reasonableness

of the Claimed Hours

A verified fee bill is “prima facie evidence the costs, expenses and services listed were necessarily incurred.” (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) However, counsel bears the burden to demonstrate the reasonableness of charges. (Mikhaeilpoor v. BMW of North America, LLC (2020) 48 Cal.App.5th 240, 247.) Fees should be denied where the court finds the tasks unreasonable or unnecessary since “padding in the form of inefficient or duplicative efforts is not subject to compensation.” (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1132.)

Dolce’s counsel claims 185.2 hours of legal work. (See Mot. P&A, p. 9; see also Barry Decl., ¶¶ 3–4.) The verified fee bill is prima facie evidence of the legal services necessarily incurred. (See COE, Exh. 22; see also Hadley, supra, 167 Cal.App.3d at 682.) IAG did not file an opposition to contest the hours claimed by Dolce’s counsel. (See Moulton Niguel Water Dist. v. Colombo (2003) 111 Cal.App.4th 1210, 1215, stating that “[c]ontentions are waived when a party fails to support them with reasoned argument and citations to authority.”)

However, the hours claimed by Dolce’s counsel include time for reviewing the opposition, drafting the reply, and preparing for and attending the hearing. (See COE, Exh. 22, pp. 10–11.) Since IAG did not oppose this motion, it is not reasonable to bill for reviewing the opposition, drafting the reply, or preparing for the hearing. Thus, the court reduces the award of attorney’s fees for unnecessary tasks by 4.3 hours (4.3 hours from Christopher P. Barry).

Therefore, the court finds Dolce substantiated 180.9 of the 185.2 hours claimed by counsel in this litigation.

Reasonableness of Counsel’s Rates

The trial court is the ultimate arbiter of what rates are reasonable. (Warren v. Kia Motors America, Inc. (2018) 30 Cal.App.5th 24, 36, stating, “experienced trial judges are the best judges of the value of professional services rendered in their courts.”) To determine if an hourly rate is reasonable, courts consider the rates of similar attorneys in the community as well as “the experience, skill, and reputation of the attorney requesting fees.” (Heritage Pacific Financial, LLC v. Monroy (2013) 215 Cal.App.4th 972, 1009.)

Here, Dolce’s counsel request hourly rates as outlined by this table:

Name	Admission Year	Rate
Christopher P. Barry	1995	$750/$715
Michelle Cook	2017	$415
Kaylin Masis	2019	$360
Stacia Ratliff-Hoogstraal	2022	$330

Haley Savage

2024

$315

Counsels'
declarations provides an overview of the experience and credentials for each
listed attorney and legal staff member and their work on this case. (Barry Decl., ¶¶ 12, 14–15; see Cook
Decl., ¶¶ 3–6; see also Savage Decl., ¶¶ 2–5.) The court considered counsels' declarations
and the cited decisions by other courts and arbitrators, but based on a review
of this case compared to other Los Angeles-area counsel in similar cases, the
court finds that the rates charged by attorney Christopher P. Barry is unreasonable. Attorneys' rates over $500 for this type of
case are excessive, so the court reduces the rate of Christopher P. Barry to a
maximum of $500/hr.

For
Christopher P. Barr, who billed and substantiated 45.5 hours at a rate of $750
and who billed 8.7 hours and substantiated 4.4 hours at a rate of $715, the
court reduces the attorney's fee award by $15,395.50.

Therefore,
adjusting counsels' rates for reasonableness, the appropriate award of
attorney's fees is $78,741.00 before applying any multiplier or deductions.

Lodestar
Multiplier

The
factors that courts look at to determine if a multiplier is reasonable are:
"(1) the novelty and difficulty of the questions involved, (2) the skill
displayed in presenting them, (3) the extent to which the nature of the
litigation precluded other employment by the attorneys, [and] (4) the
contingent nature of the fee award." (Ketchum,
supra, 24 Cal.4th at 1132.)
"[T]he purpose of a fee enhancement is primarily to compensate the
attorney for the prevailing party at a rate reflecting the risk of nonpayment
in contingency cases." (Id. at
1138.) When a case is not complicated,

"the request for a multiplier [is] specious." (Mikhaeilpoor, supra, 48 Cal.App.5th at 255.) Here, Dolce does not request a lodestar multiplier.

Therefore, the court declines to apply a lodestar multiplier to the award of reasonable attorney's fees of $78,741.00.

Deductions for Sanctions

The court must further reduce the attorney's fee award by $7,425.00 for sanctions. As Dolce's counsel states, the court ordered that they pay $7,425.00 in sanctions, which counsel for Defendant already paid. (See Barry Decl., ¶ 20.) As the moving brief highlights, the attorney's fee award requested already deducted the sanctions from the request. (See Mot. P&A, p. 9.) However, since the court made further reductions based on counsel's claimed hours and rates, the court must also apply the $7,425.00 reduction to its calculation.

Therefore, based on the sanctions previously imposed, the court further reduces the attorney's fee award to $71,316.00.

Costs and Expenses

Dolce is entitled to all $3,274.63 in claimed costs and expenses. A prevailing plaintiff has a right to recover all costs and expenses that were reasonably incurred in prosecuting the case. (Civ. Code, § 1794, subd. (d).) Allowable costs must be reasonably necessary to conduct the litigation and reasonable in amount. (Code Civ. Proc., § 1033.5, subds. (c)(2)–(c)(3).)

Dolce requests $3,274.63 in costs and expenses in the moving brief and the memorandum of costs. (See Mot. P&A, p. 15; see also COE, Exh. 21, p. 1.) Based on the memorandum of costs and the expenses described therein, the court finds that all claimed costs were reasonably incurred. (See COE, Exh. 21, pp. 1–6.)

Therefore, Dolce is entitled to all $3,274.63 in claimed costs and expenses.

Accordingly, the motion for attorney's fees is GRANTED in the reduced amount of $74,590.63.

CONCLUSION

For these reasons, the motion for attorney's fees, costs, and expenses is GRANTED in a reduced amount. The court AWARDS plaintiff Adam Dolce a total of $74,590.63.